

**SUBSTITUTE FOR
HOUSE BILL NO. 5821**

A bill to amend 1976 PA 451, entitled
"The revised school code,"
by amending section 1280f (MCL 380.1280f), as amended by 2024 PA
146.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 1280f. (1) The department shall do all of the following
2 to help ensure that more pupils will achieve a score of at least
3 proficient in English language arts on the grade 3 state
4 assessment:

5 (a) Subject to subsection (4) and subject to the availability
6 of valid and reliable assessments, approve 3 or more valid and
7 reliable screening and progress-monitoring reading assessments for
8 selection and use by school districts and public school academies



1 in accordance with the following:

2 (i) Each approved assessment must provide a screening
3 assessment and monitoring capabilities for monitoring progress
4 toward a growth target.

5 (ii) In determining which assessments to approve for use by
6 school districts and public school academies, the department shall
7 also consider at least the following factors:

8 (A) The time required to conduct the assessments, with the
9 intention of minimizing the impact on instructional time.

10 (B) The level of integration of assessment results with
11 instructional support for teachers and pupils.

12 (C) The timeliness in reporting assessment results to
13 teachers, administrators, and parents.

14 (D) The degree of compatibility with other approved statewide
15 assessment measures, to minimize the impact on instructional time.

16 (b) Recommend or develop a literacy coach model with the
17 following features:

18 (i) Except as otherwise provided in this section, district-
19 identified literacy coaches shall support teachers to use what was
20 taught during initial professional development in all of the
21 following:

22 (A) Providing instruction meeting the criteria listed in
23 subsection (10)(a)(iv) as needed, based on an analysis of pupil
24 performance data.

25 (B) Administering, scoring, and interpreting assessments under
26 this section with fidelity.

27 (C) Providing differentiated instruction and intensive
28 intervention, including, but not limited to, methods to intensify
29 instructional interventions for decoding and word recognition.



1 (D) Using data diagnostically to adjust intervention
2 instruction and to understand reasons why a pupil may not be
3 responding to intervention instruction as expected.

4 (E) Using progress monitoring.

5 (F) Identifying and addressing reading deficiency.

6 (G) Using evidence-based instructional methods and the
7 features of evidence-based interventions for pupils who experience
8 difficulties with decoding and word recognition.

9 (H) The professional learning requirements under subsection
10 (7), as appropriate.

11 (I) The appropriate use of statewide professional learning
12 tools and evidence-based practices that meet the research
13 requirements consistent with the science of reading.

14 (ii) Except as otherwise provided in this section, district-
15 identified literacy coaches shall also do all of the following:

16 (A) Model evidence-based instructional strategies for
17 teachers.

18 (B) Facilitate study groups.

19 (C) Advise in developing schoolwide and classroom
20 infrastructure to meet the collective and individual needs of
21 pupils using a multi-tiered system of support (MTSS).

22 (D) Train teachers and school staff in data analysis and using
23 data to differentiate instruction.

24 (E) Coach and mentor colleagues.

25 (F) Work with teachers to ensure that evidence-based reading
26 curriculum resources such as comprehensive core reading curriculum
27 resources and reading intervention programs are implemented with
28 fidelity.

29 (G) Train teachers and school staff to identify and address



1 reading deficiency.

2 (H) Work with teachers in applying evidence-based reading
3 strategies in other content areas, including, but not limited to,
4 prioritizing time spent on those teachers, activities, and roles
5 that will have the greatest impact on pupil achievement and
6 prioritizing coaching and mentoring in classrooms.

7 (I) Help to increase instructional density to meet the needs
8 of all pupils.

9 (J) Help lead and support reading leadership teams at the
10 school.

11 (K) Continue to increase the district-identified literacy
12 coach's knowledge base in best practices in reading instruction and
13 intervention that are supported by the research requirements
14 consistent with the science of reading.

15 (L) For each teacher who teaches in a classroom for grades K
16 to 3 and for each teacher whose classroom includes a pupil with an
17 individual reading improvement plan, model for the teacher, and
18 coach the teacher in, instruction with pupils in whole and small
19 groups.

20 (iii) In the context of performing the functions described in
21 subparagraph (ii), a district-identified literacy coach must not be
22 asked to perform administrative functions that will confuse the
23 district-identified literacy coach's role for a teacher's role.

24 (iv) District-identified literacy coaches must meet all of the
25 following:

26 (A) Have experience as a successful classroom teacher.

27 (B) Have sufficient knowledge of scientifically based reading
28 research, special expertise in quality reading instruction and
29 infusing reading strategies into content area instruction, and data



1 management skills.

2 (C) Have a strong knowledge base in working with adults.

3 (D) Have a minimum of a bachelor's degree and advanced
4 coursework in reading or have completed professional development in
5 evidence-based literacy instructional strategies.

6 (E) By the beginning of the 2027-2028 school year, meet the
7 professional learning requirements under subsection (7).

8 (v) A district-identified literacy coach must not be assigned
9 a regular classroom teaching assignment, but is expected to work
10 frequently with pupils in whole and small group intervention
11 instruction by modeling and coaching in or outside of teachers'
12 classrooms.

13 (c) By the beginning of the 2027-2028 school year, provide
14 technical assistance to school districts, intermediate school
15 districts, public school academies, and the schools operated by the
16 school districts, intermediate school districts, and public school
17 academies to aid the school districts, intermediate school
18 districts, public school academies, and the schools operated by the
19 school districts, intermediate school districts, and public school
20 academies in reporting information contained in a pupil's
21 individual reading improvement plan.

22 (2) Beginning not later than September 1, 2025, the department
23 shall develop dyslexia expertise to provide technical assistance to
24 school districts, intermediate school districts, and public school
25 academies regarding dyslexia and underlying factors that place
26 pupils at risk for difficulties in learning to decode accurately
27 and efficiently. The department shall offer expertise under this
28 subsection by providing guidance on at least both of the following:

29 (a) Structured literacy.



1 (b) Professional learning about dyslexia to school districts,
2 intermediate school districts, and public school academies.

3 (3) To support the implementation of the requirements under
4 this section, the department, based on current research, shall
5 regularly review and update the Michigan Dyslexia Handbook or a
6 similar publicly available dyslexia resource guide that includes
7 information regarding the education of pupils with dyslexia or
8 characteristics of dyslexia, to be used by school districts,
9 intermediate school districts, and public school academies. Reviews
10 and updates under this subsection must be conducted at an interval
11 not to exceed 5 years.

12 (4) By not later than January 1, 2026, the department shall
13 provide a list of approved valid and reliable screening and
14 progress monitoring reading assessments for selection and use by
15 school districts and public school academies under subsection (1)
16 and, in addition to meeting applicable requirements under
17 subsection (1), identify, within each approved assessment for
18 selection and use by school districts and public school academies
19 under subsection (1), a list of the elements of a reliable and
20 valid universal screening assessment for the purpose of identifying
21 pupils with characteristics of dyslexia or difficulties in learning
22 to decode accurately and efficiently that are or are not included
23 in the approved assessment. Beginning not later than September 1,
24 2026, the department shall develop dyslexia expertise to provide
25 technical assistance to school districts, intermediate school
26 districts, and public school academies regarding the appropriate
27 selection and use at each grade level of reliable and valid
28 universal screening assessments for the identification of pupils
29 who exhibit characteristics of dyslexia and pupils who display



difficulties in learning to decode accurately and efficiently, including those described in subsection (1), to minimize the impact on instructional time.

(5) By not later than January 1, 2026, the department shall publish a list of **not more than 15** evidence-based tier 1, class-wide elementary reading curricula and materials that are aligned with science of reading methods that research has shown to improve literacy outcomes and help pupils achieve reading proficiency. The department shall develop dyslexia expertise to provide technical assistance to school districts, intermediate school districts, and public school academies regarding evidence-based instructional methods and the features of evidence-based interventions for pupils exhibiting the characteristics of dyslexia or pupils who have difficulties in learning to decode accurately and efficiently that include instructional methods and curriculum resources that use a code emphasis approach to address the decoding and word-recognition components of reading and that are supported by the science of reading. Except as otherwise provided in this section, the instructional methods and curriculum resources described in this subsection must not include instructional methods or curriculum resources that minimize the importance of primarily using letter-sound information to decode or recognize unknown words, including, but not limited to, any of the uses of letter-sound information described in subsection ~~(23) (c) (iii) (A)~~ **(24) (c) (iii) (A)** to (E), unless such instructional methods and curriculum resources are being used to confirm the meaning of unknown words after decoding has been attempted.

(6) By not later than August 1, 2027, each school district, intermediate school district, and public school academy shall



1 update its selection of a valid and reliable screening and
2 progress-monitoring reading assessment under subsection (9) to
3 ensure that the selected system includes a reliable and valid
4 universal screening assessment in accordance with subsection (4)
5 and the guidance provided by the department under subsection (4),
6 if it does not do so already. In complying with this subsection, a
7 school district, intermediate school district, or public school
8 academy shall minimize the impact on instructional time by
9 selecting approved assessments that include elements fulfilling
10 multiple assessment requirements as described in subsection (18),
11 or, when appropriate, by adding approved assessment measures or
12 combining compatible approved assessments that, when utilized
13 together, include all of the elements of a reliable and valid
14 universal screening assessment.

15 (7) By not later than the beginning of the 2027-2028 school
16 year, each school district, intermediate school district, and
17 public school academy shall provide assurance to the department
18 that all literacy consultants, literacy coaches, and other
19 personnel providing reading intervention or reading instruction to
20 grades K to 12 pupils in the school district, intermediate school
21 district, or public school academy received professional learning,
22 as determined by the department, regarding all of the following:

23 (a) The characteristics of dyslexia and underlying factors
24 that place pupils at risk for difficulties in learning to decode
25 accurately and efficiently.

26 (b) Secondary consequences of dyslexia, such as problems in
27 reading comprehension and a reduced reading experience that can
28 impede the growth of vocabulary and background knowledge and lead
29 to social, emotional, and behavioral difficulties.



1 (c) Instructional adjustments for pupils with dyslexia and
2 instructional adjustments to address the underlying factors that
3 place pupils at risk for difficulties in learning to decode
4 accurately and efficiently.

5 (d) Methods to develop schoolwide and classroom infrastructure
6 to meet the collective and individual needs of pupils using a
7 multi-tiered system of support (MTSS).

8 (e) Evidence-based instructional methods and features of
9 evidence-based interventions that are grounded in the science of
10 reading and principles of structured literacy that are designed for
11 pupils with characteristics of dyslexia and pupils at risk for
12 difficulties in learning to decode accurately and efficiently.

13 (f) Evidence-based instructional methods and features of
14 evidence-based interventions that are grounded in the science of
15 reading and principles of structured literacy that are designed to
16 effectively meet the needs of most pupils.

17 (8) The completion of a program of study approved under
18 section 1531e fulfills the requirements of subsection (7).

19 (9) Subject to subsection ~~(28)~~, **(29)**, a school district or
20 public school academy shall do all of the following to ensure that
21 more pupils will achieve a score of at least proficient in English
22 language arts on the grade 3 state assessment:

23 (a) Select 1 valid and reliable screening and 1 progress-
24 monitoring reading assessment from the assessments approved by the
25 department under subsection (1)(a). A school district or public
26 school academy shall use these assessments for pupils in grades K
27 to 3 to screen and identify difficulties, inform instruction and
28 intervention needs, and assess progress toward a growth target. A
29 school district or public school academy periodically shall assess



1 a pupil's progress in reading skills at least 3 times per school
2 year in grades K to 3. The first of these assessments for a school
3 year in kindergarten must be conducted within the first 90 school
4 days of the school year. The first of these assessments for a
5 school year in grades 1 to 3 must be conducted within the first 30
6 school days of the school year. Beginning in the 2027-2028 school
7 year, screening of pupils in grades K to 3 under this subdivision
8 must meet the requirements in subsections (15), (16), (17), (19),
9 and (20).

10 (b) For any pupil in grades K to 3 who exhibits reading
11 deficiency at any time based on the reading assessment selected and
12 used under subdivision (a) and for pupils required to have a
13 reading intervention plan under this section, provide an individual
14 reading improvement plan for the pupil within 30 days after the
15 identification of the reading deficiency. The individual reading
16 improvement plan must be created by the pupil's teacher, school
17 principal, and parent or legal guardian and other pertinent school
18 personnel, and must describe the reading intervention services the
19 pupil will receive to remedy the reading deficiency. A school
20 district or public school academy shall provide reading
21 intervention for the pupil in accordance with the individual
22 reading improvement plan until the pupil no longer has a reading
23 deficiency.

24 (c) If a pupil in grades K to 3 is identified as having an
25 early literacy delay or reading deficiency, provide written notice
26 to the pupil's parent or legal guardian of the delay or reading
27 deficiency in writing and provide tools to assist the parent or
28 legal guardian to engage in intervention and to address or correct
29 any reading deficiency at home.



(d) Require a school principal or chief administrator to do all of the following:

(i) For a teacher in grades K to 3, target specific areas of professional development based on the reading development needs data for incoming pupils.

(ii) Differentiate and intensify professional development for teachers based on data gathered by monitoring teacher progress in improving pupil proficiency rates among their pupils.

(iii) Establish a collaborative system within the school to improve reading proficiency rates in grades K to 3.

(iv) Ensure that time is provided for teachers to meet for professional development.

(e) Utilize early literacy coaches provided through the intermediate school district in which the school district or public school academy is located, as provided for under section 35a(4) of the state school aid act of 1979, MCL 388.1635a. However, a public school academy may use a literacy coach provided by the public school academy, at the expense of the public school academy, rather than using a literacy coach provided through an intermediate school district if the literacy coach and the usage of the literacy coach otherwise meet the requirements of this section.

(10) Subject to subsection ~~(28)~~, **(29)**, a school district or public school academy shall provide reading intervention for pupils in grades K to 3, pupils in any grade required to have a reading improvement plan under subsection ~~(23)~~, **(24)**, and pupils required to have a reading intervention plan under subsection ~~(24)~~, **(25)**, including at least all of the following, as applicable:

(a) For pupils who exhibit a reading deficiency, a reading intervention using intervention curriculum resources and evidence-



1 based practices aligned to the research requirements consistent
2 with the science of reading intended to ensure that pupils are
3 proficient readers by the end of grade 3 and that includes some or
4 all of the following features:

5 (i) Is provided to each pupil who is identified with a reading
6 deficiency based on screening and other assessments that are used
7 to identify the source of the reading difficulty, and identifies
8 and addresses the pupil's reading deficiency.

9 (ii) Periodically screens each pupil's reading skills at least
10 3 times per year and monitors the progress of each pupil's reading
11 skills as recommended by the progress-monitoring assessment
12 guidelines provided under subsection (4).

13 (iii) Provides evidence-based tier 1, class-wide reading
14 instruction that is comprehensive and meets the majority of the
15 general education classroom needs.

16 (iv) Provides reading intervention that meets, at a minimum,
17 the following specifications:

18 (A) Assists pupils exhibiting a reading deficiency in
19 developing the ability to read at grade level.

20 (B) Provides intensive development in evidence-based reading
21 instructional practices, including, but not limited to, phonemic
22 awareness, phonics, fluency, vocabulary, comprehension, and other
23 skills or processes consistent with structured literacy.

24 (C) Provides extensive explicit instruction consistent with
25 structured literacy in decoding, word recognition, spelling,
26 writing, and language comprehension skills, including vocabulary,
27 morphology, and syntax, and processes for skillful reading.

28 (D) Is systematic and explicit.

29 (E) Is implemented during regular school hours in addition to



1 regular classroom reading instruction.

2 (v) Provides parents, legal guardians, or other providers of
3 care for the pupil with a read-at-home plan, including parent,
4 guardian, or care provider training workshops and regular home
5 reading.

6 (vi) Documents efforts by the pupil's school to engage the
7 pupil's parent or legal guardian and whether those efforts were
8 successful.

9 (vii) Documents any dissenting opinions expressed by school
10 personnel or a parent or legal guardian concerning the individual
11 reading improvement plan provided for the pupil under subsection
12 (9) (b) .

13 (b) For grade 3 pupils exhibiting a reading deficiency as
14 determined by the pupil's teacher through the screening assessment
15 and other assessments selected by the school district or public
16 school academy under subsection (9) (a) and for pupils in grades K
17 to 12 who are receiving increasingly intensive tier 2 and tier 3
18 support as described in subsection ~~(23) (g)~~, **(24) (g)** , a reading
19 intervention program intended to correct the identified area or
20 areas of reading deficiency and that includes all of the following
21 features as needed by the individual pupil:

22 (i) Is evidence-based, is consistent with structured literacy,
23 and has proven results in accelerating pupil reading achievement
24 within the same school year.

25 (ii) Provides more dedicated time than the pupil's previous
26 school year in evidence-based reading instruction and intervention.

27 (iii) Provides daily targeted small group or 1-to-1 reading
28 intervention based on pupil needs as determined by assessment data,
29 including explicit and systematic instruction with more detailed



1 and varied explanations, modeling and examples, and more extensive
2 opportunities for guided practice incorporating error correction
3 and feedback for pupils to develop mastery.

4 (iv) Provides administration of ongoing progress monitoring
5 assessments to frequently monitor pupil progress.

6 (v) Provides a written description of the pupil's individual
7 reading intervention program in the pupil's individual reading
8 improvement plan, including at least all of the following:

9 (A) Quarterly and annual learning goals that describe how and
10 when the pupil is expected to progress from the pupil's current
11 reading proficiency level to grade level proficiency.

12 (B) The name, if any, type, content, frequency, and duration
13 of evidence-based interventions, curriculum resources, and
14 assessments that will be utilized, and the extent to which these
15 conform to best practices identified by the department for
16 addressing the pupil's specific identified reading difficulties.

17 (C) A summary of why the intervention resources and evidence-
18 based practices selected for the pupil's individual reading
19 intervention are best suited to address the pupil's particular
20 needs.

21 (D) A description of the assessment data and the pupil's
22 assessment scores that will be used to monitor the pupil's progress
23 under subparagraph (iv) and adaptations to the intervention
24 instruction that will be provided based on feedback from the
25 assessments.

26 (E) Information about adjustments that may be made to
27 intensify the intervention instruction as needed.

28 (F) The pupil's unique identifier.

29 (G) A date by which the pupil's teacher, school principal,



1 parent or legal guardian, and other appropriate school staff shall
2 annually review and update the pupil's individual reading
3 improvement plan, including reviewing if the learning goals have
4 been met or when the learning goals will be met.

5 (vi) Is administered with fidelity.

6 (vii) Provides supplemental evidence-based reading intervention
7 delivered by a teacher, tutor, or volunteer with specialized
8 reading training that is provided before school, after school,
9 during school hours but outside of regular English language arts
10 classroom time, or any combination of these.

11 (viii) Provides parents, legal guardians, or other providers of
12 care for a pupil with a read-at-home plan, including parent,
13 guardian, or care provider training workshops and regular home
14 reading.

15 (ix) Documents efforts by the pupil's school to engage the
16 pupil's parent or legal guardian and whether those efforts were
17 successful.

18 (x) Documents any dissenting opinions expressed by school
19 personnel or a parent or legal guardian concerning the individual
20 reading improvement plan provided for the pupil under subsection
21 (9) (b) .

22 (c) Subject to subsection ~~(29)~~, **(30)** , for pupils who are
23 English language learners and who have been identified as
24 demonstrating characteristics of dyslexia or difficulty decoding by
25 an appropriate screening assessment administered under subsection
26 (20) or (21) that is consistent with department guidance provided
27 under subsection (4) to distinguish characteristics of dyslexia
28 from limited English proficiency, intervention services that
29 include at least all of the following:



1 (i) Language support in word recognition and decoding.

2 (ii) Language comprehension skills to support expanding
3 vocabulary and understanding text.

4 (iii) Intentional English language development that includes,
5 but is not limited to, using only the words and text to teach
6 decoding and word recognition.

7 (iv) Instruction meeting the criteria listed in subdivision
8 (a) (iv) .

9 (11) For all pupils exhibiting a reading deficiency as
10 determined by the pupil's teacher through the reading assessment
11 selected by the school district or public school academy under
12 subsection (9) (a), school districts and public school academies are
13 encouraged to offer summer reading camps staffed with effective
14 teachers of reading, as determined by the teacher evaluation system
15 under section 1249, providing reading intervention services and
16 supports to correct pupils' identified areas of reading deficiency.

17 (12) By July 31 of each year, the department shall notify the
18 parent or legal guardian of a pupil completing grade 3 who scored
19 not proficient in reading based on the state English language arts
20 assessment of all of the following by certified mail and in a clear
21 format:

22 (a) That the pupil has scored not proficient in reading based
23 on the state English language arts assessment.

24 (b) That the school is required to provide the pupil with the
25 supports described in subsection (13).

26 (c) The supports and interventions required to be made
27 available to the pupil under the laws of this state.

28 (d) That the parent or legal guardian has the right to request
29 a meeting with school officials to discuss supports and



1 interventions.

2 (13) Except as otherwise provided in this section, for a pupil
3 who has a reading deficiency based on the screening assessment, the
4 school district or public school academy shall provide a reading
5 intervention that is intended to correct the pupil's specific
6 reading deficiency, as identified by a valid and reliable
7 assessment. The intervention must include evidence-based
8 instructional strategies that are aligned to the research
9 requirements consistent with the science of reading to assist the
10 pupil in becoming a successful reader.

11 (14) A school district or public school academy shall provide
12 a copy of each pupil's individual reading improvement plan to the
13 school district's intermediate school district or the intermediate
14 school district that has geographic boundaries that include the
15 area in which the public school academy is located. A copy of a
16 pupil's individual reading improvement plan provided under this
17 subsection must not contain any identifying information regarding
18 the pupil or a teacher that provides instruction to the pupil. The
19 intermediate school district shall collate the information received
20 under this subsection and provide it to the department each school
21 year in a timeline and manner as determined by the department. The
22 department shall not share a pupil's individual reading improvement
23 plan with an outside vendor.

24 (15) By not later than the beginning of the 2027-2028 school
25 year, and each school year thereafter, subject to subsections (17)
26 and (20), a school district, an intermediate school district, or a
27 public school academy shall ensure that each pupil described in
28 this subsection is screened for characteristics of dyslexia and
29 difficulties in learning to decode accurately and efficiently using



1 a reliable and valid universal screening assessment. All of the
2 following pupils enrolled in the school district, intermediate
3 school district, or public school academy must be screened as
4 described under this subsection:

5 (a) Each pupil during kindergarten, grade 1, grade 2, and
6 grade 3.

7 (b) Each pupil who is in kindergarten, grade 1, grade 2, or
8 grade 3 who transferred to the school district, intermediate school
9 district, or public school academy from another school district,
10 intermediate school district, or public school academy in this
11 state and who has not been screened for characteristics of dyslexia
12 and difficulties in learning to decode accurately and efficiently
13 using a reliable and valid universal screening assessment.

14 (c) Each pupil who is in kindergarten, grade 1, grade 2, or
15 grade 3 who has transferred to the school district, intermediate
16 school district, or public school academy from a school that is not
17 located in this state, unless the pupil presents written
18 documentation to the school district, intermediate school district,
19 or public school academy showing that the pupil was subject to a
20 reliable and valid universal screening assessment.

21 (d) Each pupil who is in any of grades 4 to 12 who, as
22 determined by that pupil's teacher, educational-support staff, or
23 the pupil's parent or legal guardian, demonstrates any of the
24 following:

25 (i) Escape or avoidance behaviors when asked to engage in
26 reading or writing activities.

27 (ii) Effortful or laborious reading.

28 (iii) Reading-comprehension difficulties caused by inaccurate or
29 inefficient word reading.



1 (iv) Significant spelling or encoding difficulties not caused
2 by fine-motor or visual-motor difficulties.

3 (v) Low performance on school-district-, intermediate-school-
4 district-, or public-school-academy-approved English language arts
5 standards.

6 (vi) Low performance on school-district-, intermediate-school-
7 district-, or public-school-academy-approved standardized
8 assessments.

9 (vii) Reading deficiency.

10 (16) A school district, intermediate school district, or
11 public school academy shall screen pupils under subsection (15)
12 with fidelity.

13 (17) Pupils required to be screened under subsection (15)(a)
14 must be screened, as described in subsection (15), no fewer than 3
15 times during a school year. Pupils required to be screened under
16 subsection (15)(b) or (c) must be screened within 90 days of
17 enrollment and thereafter on the same screening schedule as other
18 pupils in the same grade level.

19 (18) If the department determines that a benchmark assessment
20 or a valid and reliable screening and progress-monitoring reading
21 assessment suite selected by a school district or public school
22 academy under subsection (9) includes a reliable and valid
23 universal screening assessment, that assessment or assessment
24 system selected under subsection (9) may be utilized to meet the
25 requirement under subsection (15).

26 (19) Beginning with the 2027-2028 school year, for a pupil
27 described in subsection (15)(d), the school district, intermediate
28 school district, or public school academy in which the pupil is
29 enrolled shall ensure that additional assessment data is gathered,



1 including the pupil's historical results on reliable and valid
2 universal screening assessments as available, and shall review this
3 data with the pupil's teacher and school staff to inform the
4 frequency of screening assessments that should be administered to
5 the pupil to avoid unnecessary assessment while effectively
6 assessing whether the pupil demonstrates characteristics of
7 dyslexia, difficulties in learning to decode, or difficulties with
8 word reading that may require an intervention placement for the
9 pupil based on the guidance provided by the department under
10 subsection (5).

11 (20) Beginning in the 2027-2028 school year, except as
12 otherwise provided in this subsection, a pupil who is an English
13 language learner and who has been assessed at an entering level or
14 beginning level of English language proficiency on a state-required
15 language proficiency assessment, or at a comparable level in
16 accordance with department guidance under subsection (2), is not
17 required to be screened for characteristics of dyslexia and
18 difficulties in learning to decode under subsection (15). However,
19 the pupil is required to be screened for characteristics of
20 dyslexia and difficulties in learning to decode under subsection
21 (15) if, in accordance with the department guidance under
22 subsection (4), school staff determine that the pupil appears to
23 demonstrate characteristics of dyslexia that are not due to
24 language transference or limited English proficiency.

25 (21) Beginning in the 2027-2028 school year, a pupil who is an
26 English language learner and who has been assessed at a developing
27 level or higher on a state-required language proficiency
28 assessment, or at a comparable level in accordance with department
29 guidance under subsection (4), must be screened for characteristics

1 of dyslexia and difficulty decoding as appropriate for the pupil's
2 grade level under subsection (15), and, as appropriate and
3 consistent with department guidance, the pupil's screening must
4 include spelling skills, phonemic awareness in the pupil's native
5 language, and oral reading fluency in the pupil's native language.

6 (22) Beginning with the 2027-2028 school year, school
7 districts, intermediate school districts, and public school
8 academies shall ensure that reading instruction and curriculum
9 materials are evidence-based, with a focus on pupils' mastery of
10 the foundational reading skills of phonemic awareness, phonics,
11 fluency, and the development of other reading skills, including,
12 but not limited to, development of oral language, vocabulary, and
13 reading comprehension. Pupils must be provided instruction aligned
14 with science of reading methods that research shows improve
15 literacy outcomes and help pupils achieve reading proficiency.

16 (23) Beginning with the 2027-2028 school year, school
17 districts, intermediate school districts, and public school
18 academies shall ensure that reading instruction and curriculum
19 materials used by the school district, intermediate school
20 district, or public school academy are selected from the list
21 published by the department under subsection (5), or developed by
22 the school district, intermediate school district, or public school
23 academy and approved by the department. The department shall
24 establish and maintain a process through which a school district,
25 intermediate school district, or public school academy may submit a
26 locally-developed or self-created literacy curriculum for approval,
27 and shall approve a locally-developed or self-created literacy
28 curriculum if the department determines that the locally-developed
29 or self-created literacy curriculum substantially aligns with



1 evidence-based literacy practices and demonstrates effectiveness in
2 improving student literacy outcomes. The approval process
3 established by the department under this subsection must include at
4 least all of the following:

5 (a) A standardized application and review process.

6 (b) Clear review criteria aligned to evidence-based literacy
7 practices and the science of reading.

8 (c) An opportunity for the submitting school district,
9 intermediate school district or public school academy to provide
10 supporting documentation, implementation materials, student
11 performance data, and research supporting the curriculum.

12 (d) A timeline for department review and approval decisions
13 that does not exceed 90 days after submission of a complete
14 application.

15 (e) Written feedback from the department if the submitted
16 curriculum is denied approval, including recommendations necessary
17 for approval.

18 (f) An opportunity for resubmission following revisions.

19 (24) ~~(23)~~ Beginning with the 2027-2028 school year, if a
20 reliable and valid universal screening assessment indicates that a
21 pupil is exhibiting characteristics of dyslexia or indicates that
22 the pupil is experiencing difficulty in learning to decode
23 accurately and efficiently, the school district, intermediate
24 school district, or public school academy in which the pupil is
25 enrolled shall ensure that a multi-tiered system of support (MTSS)
26 is provided to the pupil, including, but not limited to, decoding
27 and word recognition instruction in the tiered delivery system.
28 Beginning with the 2027-2028 school year, if a reliable and valid
29 universal screening assessment indicates that a pupil is exhibiting



1 characteristics of dyslexia or indicates that the pupil is
2 experiencing difficulty in learning to decode accurately and
3 efficiently, a reading intervention program provided under this
4 section must be part of a multi-tiered system of support (MTSS).
5 The multi-tiered system of support (MTSS) described in this
6 subsection must meet all of the following:

7 (a) Be a comprehensive framework composed of a collection of
8 evidence-based strategies designed to meet the individual needs and
9 assets of the whole pupil at all achievement levels.

10 (b) Include 3 distinct tiers of instructional support.

11 (c) Tier 1 support of the 3 distinct tiers of instructional
12 support described in subdivision (b) must, at a minimum, meet all
13 of the following:

14 (i) Encompass a combination of evidence-based strategies that
15 are available to all learners.

16 (ii) Effectively meet the needs of most pupils.

17 (iii) For the instructional methods and curriculum resources
18 under this tier used to address the decoding and word-recognition
19 components of reading, use a code emphasis instructional approach
20 and be supported by the science of reading. Except as otherwise
21 provided in this section, the instructional methods and curriculum
22 resources described in this subparagraph must not include
23 instructional methods or curriculum resources that minimize the
24 importance of primarily using letter-sound information to decode or
25 recognize unknown words, including, but not limited to, any of the
26 following, unless such instructional methods and curriculum
27 resources are being used to confirm the meaning of unknown words
28 after decoding has been attempted:

29 (A) Prompting pupils to guess unknown words using pictures and

1 illustrations.

2 (B) Skipping over an unknown word or words to use the meaning
3 of the passage to recognize the unknown word or words.

4 (C) Identifying only the first sound of an unknown word and
5 then being prompted to guess the word using the word's initial
6 sound and the meaning of the text surrounding the word.

7 (D) Memorizing a word in its written form.

8 (E) Using predictable text and leveled text to provide initial
9 word recognition instruction and practice in reading new learned
10 letter-sound correspondences.

11 (d) Tier 2 support of the 3 distinct tiers of instructional
12 support described in subdivision (b) must be provided to small
13 groups of pupils to whom at least 1 of the following applies:

14 (i) Screening-assessment data indicate a need for intervention
15 to address difficulties in learning to decode and recognizing words
16 accurately and efficiently.

17 (ii) Tier 1 instructional data indicate a need for intervention
18 to address difficulties in learning to decode and recognizing
19 words.

20 (e) Provide that tier 2 support, as described in subdivision
21 (d), must include instructional methods and curriculum resources
22 that use a code emphasis approach to address the decoding and word-
23 recognition components of reading and that are supported by the
24 science of reading. The instructional methods and curriculum
25 resources described in this subdivision must include, but are not
26 limited to, specialized instructional procedures, duration, and
27 frequency. However, these instructional methods and curriculum
28 resources must not include instructional methods or curriculum
29 resources that minimize the importance of primarily using letter-



1 sound information to decode or recognize unknown words, including,
2 but not limited to, any of the uses of letter-sound information
3 described in subdivision (c) (iii) (A) to (E), unless such
4 instructional methods and curriculum resources are being used to
5 confirm the meaning of unknown words after decoding has been
6 attempted.

7 (f) Provide that pupils receiving intervention consisting of
8 tier 2 support, as described in subdivision (d), must have their
9 progress monitored by the individuals providing the intervention
10 instruction using appropriate assessments to determine the pupils'
11 response to intervention instruction.

12 (g) Provide that, if pupils who are receiving intervention at
13 the tier 2 level of support as described in this subsection are not
14 making measurable progress in response to reading intervention at a
15 rate that will result in meaningful improvements in performance,
16 intensive tier 3 support must be provided to the pupil using
17 evidence-based instructional adaptations that must be documented in
18 the pupil's individual reading improvement plan. If the pupil is
19 determined to have a specific learning disability in reading, these
20 interventions may be provided through the student's individualized
21 education plan.

22 (h) Provide that a pupil described in subdivision (g) has a
23 current individual reading intervention plan meeting the
24 requirements of subsection (10) (b).

25 (i) Provide that, for the purposes of subdivision (g), an
26 intervention response team at the school district, intermediate
27 school district, or public school academy in which a pupil
28 described in subdivision (g) is enrolled shall refine the pupil's
29 individual reading improvement plan with the teacher providing the



1 intervention instruction to the pupil under subdivision (g) to
2 meaningfully accelerate reading outcomes.

3 (j) Provide that, if a pupil's response to the intervention
4 instruction described in subdivisions (a) to (g) or subsection (10)
5 is insufficient and there is reason to suspect the pupil has a
6 disability, subject to state and federal laws concerning special
7 education, the school district, intermediate school district, or
8 public school academy must consider the need for a full and
9 comprehensive evaluation to determine eligibility for special
10 education services.

11 **(25)** ~~(24)~~ Beginning with the 2027-2028 school year, if a
12 reliable and valid universal screening assessment indicates the
13 need for intervention, to the extent that the school district,
14 intermediate school district, or public school academy is not
15 already providing the pupil with the evidence-based intervention
16 services described in subsections (10) and ~~(23)~~, **(24)**, the school
17 district, intermediate school district, or public school academy in
18 which the pupil is enrolled shall provide the pupil with evidence-
19 based intervention services that are grounded in the science of
20 reading and the principles of structured literacy approaches or
21 programs.

22 **(26)** ~~(25)~~ A school district, an intermediate school district,
23 or a public school academy shall ensure that the necessary
24 accommodations or equipment are provided to pupils as required
25 under section 504 of title V of the rehabilitation act of 1973, 29
26 USC 794, and title II of the Americans with disabilities act of
27 1990, 42 USC 12131 to 12165.

28 **(27)** ~~(26)~~ If the parent or legal guardian of a pupil has an
29 independent, comprehensive evaluation conducted for dyslexia or



1 other learning disabilities, the school district, intermediate
 2 school district, or public school academy in which the pupil is
 3 enrolled shall ensure that any applicable requirements under the
 4 individuals with disabilities education act, Public Law 108-446,
 5 are fulfilled.

6 **(28)** ~~(27)~~—If a school district or public school academy cannot
 7 furnish the number of teachers needed to satisfy 1 or more of the
 8 criteria set forth in this section for a school year, then by the
 9 August 15 before the beginning of that school year the school
 10 district or public school academy shall develop a staffing plan for
 11 providing services under this section. The school district or
 12 public school academy shall post the staffing plan on its website
 13 for the applicable school year. The staffing plan must include at
 14 least all of the following:

15 (a) A description of the criteria that will be used to assign
 16 a pupil who has been identified as not proficient in English
 17 language arts to a teacher.

18 (b) The credentials or training held by teachers currently
 19 teaching at the school.

20 (c) How the school district or public school academy will meet
 21 the requirements under this section.

22 **(29)** ~~(28)~~—This section does not require or state an intention
 23 to require a school district or public school academy to supplant
 24 state funds with federal funds for implementing or supporting the
 25 activities under this section and does not prohibit a school
 26 district or public school academy from continuing to use federal
 27 funds for any of the purposes or activities described in this
 28 section.

29 **(30)** ~~(29)~~—For pupils identified as English language learners



1 by the pupil's teacher or other school staff or by a state-required
 2 language proficiency assessment, if available staff resources
 3 allow, a school district or public school academy is encouraged to
 4 provide the following intervention services in addition to those
 5 required under subsection (10)(c):

6 (a) Instruction in the pupil's native language, with
 7 withdrawal of that instruction as appropriate as the pupil improves
 8 the pupil's English language skills. A school district or public
 9 school academy is encouraged to provide this support for at least
 10 pupils whose native language is Spanish, Chinese, Hindi, Korean, or
 11 Arabic.

12 (b) Opportunities for speech production.

13 (c) Common English language development strategies such as
 14 modeling, guided practice, and comprehensive input.

15 (d) Feedback for the pupil, including explanations in the
 16 pupil's native language.

17 **(31)** ~~(30)~~—An individual who is not a district-identified
 18 literacy coach may be utilized to meet the requirements under
 19 subsection (1)(b)(i) and (ii) if that individual meets the
 20 requirements that a district-identified literacy coach must meet
 21 under subsection (1)(b)(iv).

22 **(32)** ~~(31)~~—The instructional methods and curriculum resources
 23 described in subsection ~~(23)(c)(iii)(A)~~ **(24)(c)(iii)(A)** to (E) may be
 24 used, as appropriate, for purposes other than addressing decoding
 25 and word-recognition components of reading and for any purpose to
 26 comply with section 504 of title V of the rehabilitation act of
 27 1973, 29 USC 794, or title II of the Americans with disabilities
 28 act of 1990, 42 USC 12131 to 12165.

29 **(33)** ~~(32)~~—As used in this section:



1 (a) "Benchmark assessment" means an assessment administered
2 periodically throughout a school year and used for 1 or more of the
3 following purposes:

4 (i) To predict and identify learner readiness for success on a
5 later summative assessment.

6 (ii) To evaluate ongoing education programs and interventions.

7 (iii) To provide teachers with individual learners' performance
8 data to inform instruction.

9 (b) "CEPI" means the center for educational performance and
10 information created under section 94a of the state school aid act
11 of 1979, MCL 388.1694a.

12 (c) "Cloze reading procedure" means an objective reading
13 assessment that deletes words in a designed reading passage.

14 (d) "Code emphasis" means direct, explicit instruction on the
15 code system of written English at the sound, syllable, morpheme,
16 and word level so pupils develop automaticity in accurate sound-
17 symbol associations used for word recognition and for developing a
18 robust sight-word vocabulary.

19 (e) "Cumulative" means the practice of basing new concepts on
20 those previously learned and maximizing retention of concepts
21 through regular, systematic review to gain automaticity and
22 fluency.

23 (f) "Diagnostic instruction" means continuous assessment and
24 individualization of instruction to meet each pupil's instructional
25 needs.

26 (g) "Dyslexia" means both of the following:

27 (i) A specific learning disorder that is neurobiological in
28 origin and characterized by difficulties with accurate or fluent
29 word recognition and by poor spelling and decoding abilities that



1 typically result from a deficit in the phonological component of
2 language that is often unexpected in relation to other cognitive
3 abilities and the provision of effective classroom instruction.

4 (ii) A specific learning disorder that may include secondary
5 consequences, such as problems in reading comprehension and a
6 reduced reading experience that can impede the growth of vocabulary
7 and lead to social, emotional, and behavioral difficulties.

8 (h) "Evidence-based" means an activity, program, process,
9 service, strategy, or intervention that demonstrates statistically
10 significant effects on improving pupil outcomes or other relevant
11 outcomes and that meets at least both of the following:

12 (i) At least 1 of the following:

13 (A) Is based on strong evidence from at least 1 well-designed
14 and well-implemented experimental study.

15 (B) Is based on moderate evidence from at least 1 well-
16 designed and well-implemented quasi-experimental study.

17 (C) Is based on promising evidence from at least 1 well-
18 designed and well-implemented correlational study with statistical
19 controls for selection bias.

20 (D) Demonstrates a rationale based on high-quality research
21 findings or positive evaluation that the activity, program,
22 process, service, strategy, or intervention is likely to improve
23 pupil outcomes or other relevant outcomes.

24 (ii) Includes ongoing efforts to examine the effects of the
25 activity, program, process, service, strategy, or intervention.

26 (i) "Explicit" means direct and deliberate instruction through
27 continuous pupil-teacher interaction that includes explanation,
28 teacher modeling or example, and multiple opportunities to practice
29 with feedback for students to develop mastery.



(j) "Fidelity" means the extent to which an assessment or intervention is implemented as it was designed.

(k) "Intervention response team" means a group of individuals with expertise in assessments, literacy, working with English language learners, working with pupils with disabilities, and behavioral efforts who develop individualized plans to support pupils with significant and persistent needs. An intervention response team must include at least 1 certificated teacher who has English as a second language or bilingual education as an endorsement on the teacher's certificate.

(l) "Leveled text" means text that has characteristics of predictable text and text focused on teaching high-frequency words without regard to sound-symbol associations. Leveled texts are assigned a level based on a difficulty scale according to print features, content, themes, ideas, text structure, language, and literary elements. Leveled text does not provide pupils opportunities to apply newly learned phonological and orthographic knowledge.

(m) "Multi-tiered system of support (MTSS)" means a comprehensive framework that includes 3 distinct tiers of instructional support and is composed of a collection of evidence-based strategies designed to meet the individual needs and assets of a whole pupil at all achievement levels.

(n) "Phonemic awareness" means the conscious awareness of all of the following:

(i) Individual speech sounds, including, but not limited to, consonants and vowels, in spoken syllables.

(ii) The ability to consciously manipulate through, including, but not limited to, matching, blending, segmenting, deleting, or



1 substituting, individual speech sounds described in subparagraph
2 (i) .

3 (iii) All levels of the speech sound system, including, but not
4 limited to, word boundaries, rhyme recognition, stress patterns,
5 syllables, onset-rime units, and phonemes.

6 (o) "Predictable text" means text that replicates language
7 patterns using rhythm and rhyme to teach pupils phrasing and
8 cadence.

9 (p) "Progress-monitoring assessment" means an assessment used
10 after a pupil is identified and matched with intervention support
11 to determine if the pupil continues to need intervention, if
12 supports need to be modified or changed, or if supports can be
13 faded.

14 (q) "Reading deficiency" means scoring below grade level or
15 being determined to be at risk of not meeting grade-level reading
16 expectations based on a screening assessment, standardized
17 summative assessment, or progress monitoring.

18 (r) "Reading leadership team" means a collaborative system led
19 by a school building's principal or program director and consisting
20 of a cross-section of faculty who are interested in working to
21 improve literacy instruction across the curriculum.

22 (s) "Reliable" means something that is based on the
23 consistency of a set of scores that are designed to measure the
24 same thing.

25 (t) "Science of reading" means a cumulative and evolving body
26 of evidence whose research studies follow a scientific process of
27 inquiry and utilize scientific methods to help answer questions
28 related to reading development and issues related to reading and
29 writing derived from research from multiple fields of cognitive



1 psychology, communication sciences, developmental psychology,
2 education, special education, implementation science, linguistics,
3 and neuroscience.

4 (u) "Screening assessment" means an assessment designed to
5 proactively identify pupils who may be at risk of developing
6 academic, social, emotional, or behavioral challenges so that
7 support can be provided and to provide data to inform systems-level
8 decisions. All of the following apply to a screening assessment:

9 (i) A screening assessment must include, as appropriate for
10 grade level or age as determined by the department, in alignment
11 with the guidelines described in subsections (2) and (4), elements
12 designed to identify difficulties in learning to decode and
13 recognize words, including at least all of the following:

- 14 (A) Phonemic awareness.
- 15 (B) Rapid automatized naming.
- 16 (C) Letter-sound correspondence.
- 17 (D) Single-word reading.
- 18 (E) Nonsense-word reading.
- 19 (F) Oral passage reading fluency.

20 (ii) A screening assessment may include, as appropriate for
21 grade level or age as determined by the department, in alignment
22 with the guidelines described in subsections (2) and (4), elements
23 designed to identify comprehension difficulties, including at least
24 all of the following:

- 25 (A) Retelling.
- 26 (B) Cloze reading procedure.
- 27 (C) Answering questions about a reading passage.

28 (v) "Standardized assessment" means an assessment that is
29 administered and scored in a consistent or standard manner.



1 (w) "Structured literacy" means systematic, direct, explicit,
2 cumulative, and diagnostic instruction that integrates listening,
3 speaking, reading, and writing and emphasizes the structure of
4 language across the speech sound system (phonology); the writing
5 system (orthography); the structure of sentences (syntax); the
6 meaningful parts of words (morphology); the meaning of words,
7 phrases, sentences, and text (semantics); and the processing of
8 oral and written discourse.

9 (x) "Systematic" means following the logical order of language
10 and moving from the most basic concepts to the more advanced.

11 (y) "Valid" means the degree to which a method assesses what
12 it claims or intends to assess.